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involves the same information she gave defendant. (CAC ¶¶ 62, 68-70.) Ms. Chipres and Mr. Reader plead on information and belief, because defendant has not disclosed either breach's scope. (CAC ¶¶ 74-75, 86-87.) All four allege lost time, anxiety, an increased risk of identity theft, and a continuing interest in data defendant still holds on systems "shown to be susceptible to compromise." (CAC ¶¶ 59-61, 72-73, 80-85, 92-97.)

Defendant demurs to each of the ten claims on the grounds they fail to state sufficient facts to support any cause of action. Defendant also argues plaintiffs lack standing. Based on the Court's review of the complaint, when read liberally and in context, plaintiffs' allegations are sufficient to support all claims and the demurrer is therefore overruled.

No. 26CV00447

SIMPSON v. DEBERT

DEFENDANT'S MOTION FOR RECONSIDERATION

The motion is denied.

I. BACKGROUND

Plaintiff Jeff Simpson's second amended complaint ("SAC"), filed April 20, 2026, alleges three causes of action against defendant Charlene DeBert – trespass, encroachment/nuisance, and quiet title. Both parties are self-represented. There is a neighbor dispute; plaintiff alleges that defendant built a fence that encroaches on his land, and trespassed onto his property across his driveway, gate area and leach field. Defendant has claimed ownership of these areas. Defendant has also allegedly resorted to yelling at plaintiff via a surveillance camera, which she later removed, resulting in at least one call for service from the Sheriff's Office.

Defendant argued in her demurrer and motion to strike that plaintiff's trespass cause of action fails because the boundary was not established until a survey, and defendant could not have trespassed on an unknown boundary. Much of her demurrer discussed the process of finding a missing boundary marker and relied on her declaration statements, none of which are found in the four corners of the SAC. She contended the second cause of action for nuisance fails for the same reasons and the entire SAC fails for uncertainty. Her motion to strike sought to strike all references to "visible monuments," punitive damages, emotional distress damages, "willful disregard," "intentional trespass," and defendant's refusal caused survey costs.

The court overruled the demurrer and denied the motion to strike. Defendant now moves for reconsideration on the grounds that the court overlooked Exhibit D to the SAC and its direct

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contradiction of complaint allegations. Defendant argues that the SAC alleges the shared boundary is clearly established by a straight line between visible monuments, but in Exhibit D plaintiff admits he could not locate the NE corner monument.

II. LEGAL STANDARDS

Within 10 days after service upon the party of written notice of entry of the order (extended for service) and based upon new or different facts, circumstances, or law, a party may make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Code Civ. Proc., §§ 1008, 1013.)¹

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden under section 1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at [the hearing].” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.) A party seeking reconsideration based on new or different facts, circumstances, or law must provide a satisfactory explanation for not presenting it earlier. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.)

III. DISCUSSION

Defendant has not shown any new or different facts, circumstances or law requiring reconsideration. The court’s previous ruling that much of the demurrer was based on information outside the four corners of the SAC stands. Defendant did not refer to Exhibit D of the SAC in her motion; instead, she attached the parties’ emails to her declaration, rendering them outside the complaint and failing to identify them as part of the complaint. Second, the fact that information in plaintiff’s 24-page exhibit of the parties’ correspondence about their boundary dispute showing he could not locate one boundary monument does not negate that the SAC sufficiently states causes of action for trespass, nuisance and quiet title. Third, defendant had every opportunity to raise this argument on reply to her demurrer and did not. Finally, the demurrer was also overruled due to defendant’s procedural defects – lack of service and failure to meet and confer.

Accordingly, this motion for reconsideration is denied.

¹ All future statutory references are to the Code of Civil Procedure, unless otherwise stated.

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No. 22CV02635

WILCOX v. MADURA

**(UNOPPOSED) DEFENDANTS' MOTION TO COMPEL RESPONSES TO
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE; FORM
INTERROGATORIES, SET ONE; SPECIAL INTERROGATORIES, SET ONE;
TO ADMIT MATTERS SPECIFIED IN REQUEST FOR ADMISSIONS, SET
ONE; AND FOR TERMINATING AND MONETARY SANCTIONS**

The unopposed motion is granted, as discussed below.

This action is a business dispute between partners in two limited liability companies. Plaintiff Steven Wilcox brought this action for dissolution, damages, and accounting against defendants Karen Madura, Santa Cruz Taverns, LLC, and Seabright Taverns, LLC. Madura holds a 50% interest in Santa Cruz Taverns LLC and plaintiff holds the remaining 25% interest. Plaintiff and Madura each hold a 50% membership interest in Seabright Taverns, LLC.

On April 2, 2026, counsel for defendants served form and special interrogatories, set one; request for production of documents, set one; and request for admissions set one, on plaintiff through his counsel. (Decl. of Nelson at ¶3, Ex. B.) The due date came and went without responses. Counsel for defendants called and emailed plaintiff's counsel multiple times regarding the overdue discovery without receiving responses, necessitating this motion to compel. (Decl. of Nelson at ¶¶ 4-5.)

"If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. [Citation.]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2026) §8:137.) Further, "[a]ll that need be shown in the moving papers is that a set of interrogatories was properly served on opposing party, that the time to respond has expired, and that no responses of any kind has been served." (Weil & Brown *Civ. Pro. Before Trial* (TRG 2026) §8:1140; Code Civ. Pro. § 2030.290, subd. (b).) "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2030.290, subd. (c).)

"Where there has been no timely response to a CCP §2031.010 demand, the first thing the demanding party must do is to seek an ordering compelling a response. [CCP §2031.300]." (Weil Brown *Civil Procedure Before Trial* (TRG 2026) § 8:1483.) Failure to respond timely waives all objections. "If a motion to compel responses is filed and a party properly asks for